

speech. An administrative law judge disposing of a complaint asserting a violation of § 211B.02 may: (1) dismiss the complaint, (2) issue a reprimand, (3) impose a civil penalty of not more than \$5,000, or (4) refer the complaint to the appropriate county attorney. Minn. Stat. § 211B.35, subdiv. 2(a)-(b), (d)-(e). The county attorney has discretion over the prosecution of any referral. *Id.* § 211B.16.

In July 2020, the RFL parties unsuccessfully moved for a preliminary injunction. While they claimed Minnesota's Office of Administrative Hearings had found violations of § 211B.02 and described how the statute chilled their political speech, the county attorneys responded with declarations stating that they had never prosecuted anyone under § 211B.02, were not currently investigating any alleged § 211B.02 violation, and had no present intention to prosecute anyone under the statute. This Court affirmed the district court's determination that *Ex parte Young* did not apply. Minn. RFL I, 33 F.4th at 992.

The RFL parties then moved for partial summary judgment and the county attorneys cross-moved for summary judgment, with all parties submitting the same or similar evidence as that offered at the preliminary injunction stage. The RFL parties now appeal the adverse grant of summary judgment.

## II. DISCUSSION

The doctrine of *Ex parte Young* is a narrow exception to Eleventh Amendment immunity that permits suits for prospective declaratory and injunctive relief against state officials sued in their official capacities. Monroe v. Ark. State Univ., 495 F.3d 591, 594 (8th Cir. 2007). *Ex parte Young* only applies to officials who threaten and are about to commence civil or criminal proceedings to enforce unconstitutional policies. 281 Care Committee v. Arneson, 766 F.3d 774, 797 (8th Cir. 2014). Nothing the RFL parties have presented undermines the Court's prior decision in this case holding that the county attorneys provided sufficient assurance that they will not enforce § 211B.02. See Minn RFL I, 33 F.4th at 992. Because this Court previously resolved the legal question of *Ex parte Young*'s applicability and the parties have not presented evidence materially different from what was introduced